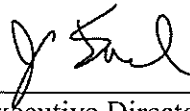


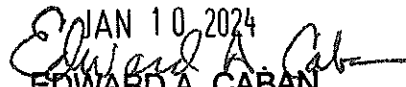
FIRST ENDORSEMENT

Executive Director Jon Darche, Civilian Complaint Review Board to Deputy Commissioner Amy J. Litwin, Department Advocate's Office, June 12, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No. 2023-27784 against Sergeant Smithu Samuel, Tax Registry No. 933322. The case was conferenced on May 9, 2023, before Assistant Deputy Commissioner of Trials Paul Gamble, who approved the negotiated plea of a Schedule B Command Discipline with the forfeiture of TEN (10) vacation days for DADS No. 2023-27784, after accepting the finding(s) of substantiation of the allegations contained in the Amended Charges and Specifications.



Executive Director
New York City Civilian Complaint Review Board

DISAPPROVED

JAN 10 2024

EDWARD A. CABAN
POLICE COMMISSIONER



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2023-27784
BOOK & PAGE NO. Page 1 of 1
PERSONNEL ORDER NO.

RANK/TITLE SGT	SURNAME, SAMUEL	FIRST SMITHU	M.I.	COMMAND 061 PRECINCT
SHIELD NO. 2294	TAX REGISTRY NO. 933322	SOCIAL SECURITY NO.	DATE APPOINTED 07/01/2003	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1. Sergeant Smithu SAMUEL, on or about September 9, 2021, at approximately 1743, while assigned to 061 PCT and on duty, in the vicinity of § 87(2)(b) Kings County, wrongfully used force, in that they used physical force against § 87(2)(b) by holding his head against the ground without police necessity.	DISMISSED	B - COMMAND DISCIPLINE 1.00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2. Sergeant Smithu SAMUEL, on or about September 9, 2021, at approximately 1743, while assigned to 061 PCT and on duty, in the vicinity of Outside of § 87(2)(b) Kings County, Sgt. SAMUEL restricted § 87(2)(b) breathing.	DISMISSED	
3. Sergeant Smithu SAMUEL, on or about June 23, 2022, at approximately 0951, while assigned to 061 PCT, and on duty, in the vicinity of 100 Church Street, provided an inaccurate official statement to the Civilian Complaint Review Board by stating that their hand was not on § 87(2)(b) head	DISMISSED	

DC B...
FIRST DEPUTY COMMISSIONER

10/2/23
DATE

POLICE COMMISSIONER'S APPROVAL

☐ Approved

☒ Disapproved

☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

1/10/24
DATE



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

January 4, 2024

Re: CCRB Case No. 202105575 (Incident Date: September 9, 2021) involving Sergeant Smithu Samuel, Tax No. 933322 (DADS No. 2023-27784)

Dear Mr. Darche:

The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving the above officer and has determined that his actions did not reflect the alleged misconduct, and therefore, no disciplinary action is warranted.

On September 9, 2021, officers from the 61st Precinct responded to a domestic call. Upon their arrival to the front of the residential building, they met the individual who was involved in the domestic incident with her boyfriend inside his apartment. Shortly after speaking with the female, her boyfriend exited and explained to the officers that she assaulted him and caused damage to several of his personal belongings inside his apartment. The officers attempted to deescalate the situation and separate the couple as much as possible since they were standing outside in the courtyard yelling at one another. Nonetheless, the parties became more agitated. In response, the officers who were talking to the boyfriend told him to step back in an attempt to further separate the disputing parties. This caused the boyfriend to turn his hostility towards the officers to a point where the officers needed to restrain him. One officer deployed their Taser and at one point three officers were struggling to gain control over the boyfriend. Finally, once the situation appeared to be under control, the boyfriend spit directly into the eye/face of one of the officers. This caused a further struggle during which the boyfriend spit again at the officers. At this point, Sergeant Samuel arrived and employed a controlled takedown maneuver to put the boyfriend on the ground, on his side, to prevent him from further spitting on the officers. Since other tactics had been unsuccessful, the sergeant's tactics were necessary to control the situation. Part of the maneuver was to hold his head down and prevent him from turning his head and spitting at them again. Throughout the sergeant's actions, the boyfriend was able to continue yelling and protesting. There

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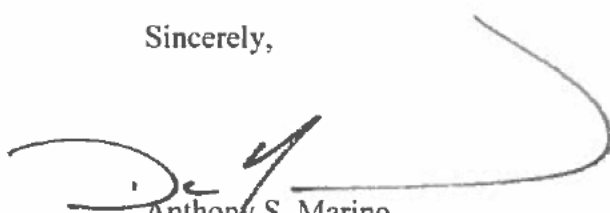
Website: <http://nyc.gov/nypd>

was no evidence presented to indicate that any pressure being applied by the Sergeant was to the boyfriend's neck, or that the pressure was actually restricting the boyfriend's breathing.

In addition to the force allegations, Sergeant Samuel is charged with providing an inaccurate statement to CCRB with regard to where he placed his hands when holding the individual down on the ground. The amended charges and specifications indicate that the inaccuracy was for Sergeant Samuel's statement that his hand was not on the individual's head. In reviewing the CCRB interview, Sergeant Samuel states during several points in the interview that his hand was on the individual's head, on his hair and then moves towards the shoulder/body area. The body camera footage corroborates that his hand was towards the back of the individual's head, touching his hair and ear. Throughout the interaction, the individual is heard yelling for Sergeant Samuel to get off his head. CCRB notes, however, that an inaccuracy occurs when Sergeant Samuel denies contact with the individual's scalp and that he should have been aware that his hand made contact with the scalp at some point when he was holding him down on the ground. Since Sergeant Samuel was forthcoming in describing several points of contact with the individual's head, it would be disingenuous to differentiate the head from the scalp and categorize his interpretation of hand placement as an inaccurate statement. Certainly, an admission to contact with the scalp would have made little to no difference since the scalp is part of the head and the Sergeant admitted to his hand making contact with the individual's head. Finally, CCRB notes that there was no attempt to deceive by Sergeant Samuel in his interview. The Police Commissioner agrees.

Therefore, the Police Commissioner intends to dismiss the charges and specifications in this matter and Sergeant Samuel will receive no disciplinary action for the alleged misconduct.

Sincerely,



Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office

cc: John D'Alessandro, Esq.



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
100 CHURCH STREET 10th FLOOR
NEW YORK, NEW YORK 10007 ♦ TELEPHONE (212) 912-7235
www.nyc.gov/ccrb



ARVA RICE
INTERIM CHAIR

January 9, 2024

The Honorable Edward Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: Sgt. Smithu Samuel, Tax# 933322, CCRB Case No. 202105575, DADS# 2023-27784

Dear Commissioner Caban:

I am writing in response to the letter from Deputy Chief, Anthony Marino, dated January 4, 2024, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) of your intent to dismiss the Charges and Specifications against Sergeant Samuel. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

The entirety of the incident is captured on Sgt. Samuel’s Body Worn Camera (BWC). Sgt. Samuel responded to a domestic incident in the vicinity of the 61st Precinct that officers were unable to de-escalate. Deputy Chief Marino writes that Commissioner Caban determined that Sgt. Samuel assisted in the takedown of the civilian, § 87(2)(b) and that part of this maneuver was to hold the civilian’s head down and prevent him from turning and spitting.

Commissioner Caban further determined that the civilian was also screaming and that there was no evidence presented to indicate that any pressure was being applied, or that the pressure restricted his breathing.

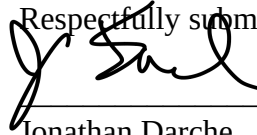
The CCRB respectfully disagrees with this analysis. The civilian can be heard screaming that he cannot breathe and on the BWC video you can see the civilian kicking his legs in what appears to be a seizure. Additionally, when Sgt. Samuel finally did move his hand from the civilian’s head, you could visibly see the redness from the force used by the Sgt. Notably, Sgt. Samuel accepted the findings of substantiation of the allegations contained in the Charges and Specifications.

Although the CCRB acknowledges that Sgt. Samuel did not intend to deceive, this does not negate the fact that when Sgt. Samuel was presented with video evidence of his misconduct, Sgt. Samuel was not forthcoming about the takedown and the force used against § 87(2)(b) Sgt.

Samuel did not admit that he made contact with the civilian's head but instead reiterated that contact was only made with § 87(2)(b) hair and shoulder area. Sgt. Samuel denied that he held § 87(2)(b) down by his head and instead testified to the CCRB that it was the civilian's shoulder area.

The CCRB would ask the Police Commissioner to accept the CCRB's recommendation and penalty that was agreed to by Sgt. Samuel and impose upon Sgt. Samuel a Command Discipline Schedule (B) and the forfeiture of ten (10) vacation days.

Respectfully submitted,

A handwritten signature in black ink, appearing to read 'Jonathan Darche', written over a horizontal line.

Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board